



Expedited Removal of Aliens: An Introduction

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Aliens who do not meet certain requirements to enter or be present in the United States may be subject to removal. Federal immigration laws establish different removal processes for different categories of aliens. Most aliens apprehended within the interior of the United States are subject to [standard removal proceedings](#) under [8 U.S.C. § 1229a](#). There is a separate “expedited removal” process for certain arriving aliens and aliens who entered the United States without inspection. This process, created by Congress in 1996, allows for an immigration officer to order the removal of certain aliens without further hearing or review. Since enactment, this streamlined process generally has been limited in its application to cover individuals encountered at ports of entry or in areas near the border; however, the application of this process has been expanded over the years.

The most recent expansion occurred in 2025, when President Trump [directed](#) the Secretary of Homeland Security to “take all appropriate action” to exercise authority delegated by Congress to designate additional classes of aliens subject to expedited removal. Pursuant to that authority, the Department of Homeland Security (DHS) in 2025 [announced](#) it was expanding the scope of who would be subject to expedited removal “to the fullest extent authorized by Congress” to include certain aliens apprehended anywhere in the United States who have been present in the country for less than two years.

This In Focus provides a brief introduction to the expedited removal framework and discusses recent efforts by the executive branch to utilize its delegated authority. For a more detailed discussion, see CRS Report R45314, [Expedited Removal of Aliens: Legal Framework](#), by Hillel R. Smith (2019).

Statutory Framework and Implementation

Congress enacted the expedited removal process as part of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996. Under a provision found in [8 U.S.C. § 1225\(b\)\(1\)](#), DHS is generally directed to summarily remove aliens arriving at a designated U.S. port of entry “without further hearing or review” if they are found to be inadmissible either because (1) they lack valid entry documents or (2) they tried to procure their admission through fraud or misrepresentation.

Section 1225(b)(1)(A)(iii) also [authorizes](#) the Secretary of Homeland Security (formerly the Attorney General) to extend application of expedited removal to “certain other aliens” inadmissible on the same grounds if they (1) were not admitted or [paroled](#) into the United States by immigration authorities and (2) cannot establish at least two years’ continuous physical presence in the United States at the time of apprehension. The statute specifies that the designation of additional classes of aliens subject to expedited removal “shall be in the sole and unreviewable discretion of the [Secretary] and may be modified

at any time.” With limited exceptions, this discretionary designation is [not subject to judicial review](#).

Prior to 2025, immigration authorities implemented expedited removal mainly for three overarching categories of aliens who lack valid entry documents or attempted to falsely procure admission: (1) [arriving aliens](#) (defined by [regulation](#) as aliens arriving at U.S. ports of entry); (2) aliens who [entered the United States by sea](#) without being admitted or paroled into the United States, and who have been in the country less than two years; and (3) aliens [apprehended within 100 miles of the U.S. border within 14 days](#) of entering the country, and who have not been admitted or paroled.

Most aliens subject to expedited removal have thus been apprehended either at a designated [port of entry or near the international border](#) when trying to enter, or shortly after entering, the United States between ports of entry.

In 2025, DHS announced it would [employ](#) expedited removal to the [full degree](#) authorized by [§ 1225\(b\)\(1\)](#) to cover aliens who have not been admitted or paroled and who have been in the United States less than two years. Following a 2025 legal challenge, a U.S. District Court judge in the District of Columbia [stayed](#) the expansion, [ruling](#) that applying the streamlined expedited removal procedures to this category of aliens likely violates their constitutional right to due process. In 2026, the D.C. Circuit Court of Appeals [vacated](#) that decision, allowing DHS to implement the expansion of expedited removal while litigation continues in the district court.

Exceptions to Expedited Removal

An alien subject to expedited removal typically will be ordered removed without further hearing or the ability to contest a removal determination. Congress established exceptions for certain categories of aliens.

Credible Fear Determinations

The statute provides that an alien otherwise subject to expedited removal who expresses an intent to apply for asylum or a fear of persecution if returned to a particular country is entitled to administrative review of that claim before being removed. Section 1225(b)(1) [instructs](#) that the examining immigration officer must refer the alien for an interview with an asylum officer to determine whether the alien has a “credible fear” of [persecution or torture](#).

A credible fear determination is a screening process that [evaluates](#) whether an alien might qualify for one of three forms of relief from removal: [asylum](#), [withholding of removal](#), and protection under the [Convention Against Torture \(CAT\)](#). Among these, asylum is the only form of relief that gives the alien an avenue to adjust to [lawful permanent resident \(LPR\) status](#). The credible fear determination is not intended to fully assess the alien’s claims, but only to determine whether the

claims are sufficiently viable to warrant more thorough review. An alien who shows a credible fear of persecution is placed in standard removal proceedings rather than expedited removal. There, the alien [may pursue](#) relief or protection from removal.

If an asylum officer determines that an alien does not have a credible fear of persecution, the alien [may request review](#) of that determination before an Immigration Judge (IJ). If the IJ concurs with the negative credible fear finding, the alien [will be subject to expedited removal](#). If the IJ finds that the alien has a credible fear of persecution, the IJ [will vacate the asylum officer's determination](#) and the alien will be placed in standard removal proceedings.

Aliens Who Claim to Be U.S. Citizens, LPRs, Refugees, or Persons Granted Asylum

Section 1225(b)(1) creates an [exception](#) to expedited removal procedures for an alien who claims to be either a U.S. citizen, LPR, admitted [refugee](#), or [asylee](#). Under implementing regulations, an immigration officer [must attempt to verify](#) any such claim before issuing an expedited removal order. If the immigration officer cannot verify the claim, the alien [may seek administrative review](#) of it before an IJ.

Withdrawal of Application for Admission

As an alternative to expedited removal, DHS may permit an alien to [withdraw voluntarily](#) his or her application for admission if the alien intends and is able to depart the United States immediately. The immigration officer typically considers [several factors](#) to determine whether an alien may withdraw the application for admission, such as the alien's prior immigration history, age and health, and "other humanitarian or public interest considerations."

Unaccompanied Children

Under federal statute, [unaccompanied alien children](#) (UACs) are not subject to expedited removal and are [placed in standard removal proceedings](#) instead. UACs are generally [put in the custody](#) of the Department of Health and Human Services' [Office of Refugee Resettlement](#) but may be [released to an adult sponsor](#). DHS may permit UACs to [return voluntarily](#) to their countries in lieu of removal proceedings if they are nationals of Mexico or Canada and meet certain criteria.

Detention and Parole of Aliens Subject to Expedited Removal

Section 1225(b)(1) generally [requires](#) the detention of aliens placed in expedited removal, as well as during any [credible fear determination](#) or [administrative review](#) of a claim that the alien has legal status. The statute's mandatory detention requirements [have been construed](#) to cover aliens who are first screened for expedited removal, even if they are later placed in removal proceedings (e.g., because the alien established a credible fear of persecution). DHS, however, may [parole](#) an alien otherwise subject to detention under § 1225(b)(1) for "urgent humanitarian reasons or significant public benefit," enabling the alien to be

released from the agency's physical custody. In addition, a 1997 court settlement agreement known as the [Flores Settlement](#) generally limits the period in which an alien minor may be detained by DHS under this provision.

Limitations to Judicial Review of an Expedited Order of Removal

Section 1252(a)(2)(A) generally bars judicial review of an expedited removal order. Judicial review, however, is available in limited circumstances.

Habeas Corpus Proceedings

Under 8 U.S.C. § 1252(e)(2), an alien may challenge an expedited removal order in habeas corpus proceedings, contesting the legality of his or her detention. The habeas court's jurisdiction is limited to whether the petitioner (1) is an alien; (2) was ordered removed under § 1225(b)(1)'s expedited removal provisions; and (3) "can prove by a preponderance of the evidence that" he or she is an LPR, refugee, or asylee. Most [courts](#) have [construed](#) § 1252(e)(2) as [barring review](#) of the legality of the underlying expedited removal proceedings. In *Department of Homeland Security v. Thuraissigiam*, the Supreme Court [upheld](#) these judicial review limitations against a constitutional challenge.

Challenges to the Expedited Removal System

Under 8 U.S.C. § 1252(e)(3), an alien subject to an expedited order of removal may challenge the validity of the expedited removal system by filing a lawsuit in the U.S. District Court for the District of Columbia. The district court's review is limited to determining whether (1) the expedited removal statute or its implementing regulations is constitutional or (2) "a regulation, or written policy directive, written policy guideline, or written procedure issued by" DHS to implement expedited removal is consistent with the statute or other laws. The lawsuit must be brought within 60 days after implementation of "the challenged section, regulation, directive, guideline, or procedure." The legal challenge to DHS's 2025 expansion of expedited removal was brought [pursuant to this statute](#).

Collateral Challenges Raised as a Defense During Criminal Proceedings for Unlawful Reentry

Section 1225(b)(1) [provides that](#) in criminal prosecutions for [unlawful reentry](#) into the United States after removal, courts cannot consider claims challenging the validity of an expedited removal order serving as the basis for the reentry prosecution. Some federal appellate [courts](#), however, have [held](#) that the statute [does not bar](#) judicial review of whether a prior expedited removal proceeding was "fundamentally unfair" (i.e., that the proceeding violated the alien's right to due process and deprived the alien of the opportunity to seek relief). Thus, in some cases, an alien criminally charged with unlawful reentry after removal may collaterally challenge a prior expedited removal order.

Hillel R. Smith, Legislative Attorney

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